SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2499 of 2020 (YEAR: 2017)

CORAM: AMITAVA ROY, ARUN MISHRA, SANJAY KISHAN KAUL

Mukund Dewangan
... Appellant(s) / Petitioner(s)
Versus
Oriental Insurance Co. Ltd.
... Respondent(s)

Acts Referred:	Motor Vehicles Act, 1988
Sections:	Section 3 Motor Vehicles Act, Section 10 Motor Vehicles Act

JUDICIAL HEADNOTE & SUMMARY

Held that a driver holding a Light Motor Vehicle (LMV) license is competent to drive a transport vehicle of unladen weight under 7,500 kg without separate endorsement.

RATIO DECIDENDI

The Court held that: Held that a driver holding a Light Motor Vehicle (LMV) license is competent to drive a transport vehicle of unladen weight under 7,500 kg without separate endorsement. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Mukund Dewangan v. Oriental Insurance Co. Ltd. (Civil Appeal No. 2499 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Motor Vehicles Act, 1988, particularly Section 3 Motor Vehicles Act, Section 10 Motor Vehicles Act. Held that a driver holding a Light Motor Vehicle (LMV) license is competent to drive a transport vehicle of unladen weight under 7,500 kg without separate endorsement.

OPERATIVE ORDER

ORDER: Decided